

The U.P. Government Servants' (Recognition of Service Associations) Rules, 1959

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State of Uttar Pradesh - Act

The U.P. Government Servants' (Recognition of Service Associations) Rules, 1959

UTTAR PRADESH

India

The U.P. Government Servants' (Recognition of Service Associations) Rules, 1959

Rule THE-U-P-GOVERNMENT-SERVANTS-RECOGNITION-OF-SERVICE-ASSOCIATIONS-RULES-1959 of 1959

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The U.P. Government Servants' (Recognition of Service Associations) Rules, 1959

Published vide Notification No. 4108-2-B-162-59, dated September 21, 1961, published in U.P. Gazette, Part 1-A, dated September 30, 1961

In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Governor of Uttar Pradesh is pleased to make the following rules, regulating the recognition of Service Associations of Government servant:

1.

Short title.

- These rules, may be called the Uttar Pradesh Government Servants' (Recognition of Service Associations) Rules, 1959.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"The Government" means the Government of Uttar Pradesh;

(b)

"Government Servant" means a person appointed to or holding any of the public services and posts in connection with the affairs of the State of Uttar Pradesh;

(c)

"Service Association" includes a Federation or a Confederation of Service Associations.

3.

Service Associations already recognized.

- A Service Association which has been recognised by the Government before the commencement of these rules and in respect of which the recognition is subsisting at such commencement shall be deemed to have been recognized by the Government under these rules and shall continue to be so recognized until the recognition is withdrawn under Rule 7.

4.

Conditions for recognition of Service Associations.

- No Service Associations shall be recognized by Government after the commencement of these rules, unless all the following conditions are satisfied, namely-

(a)

an application for recognition of the Service Association is made with all the information relevant for such recognition;

(b)

the Service Association is formed primarily with the objection of promoting the common service interests of its members;

(c)

membership of the Service Association is restricted to a distinct category of Government servants having common interest; all such Government servants being eligible for membership of the Service Association; provided as retired Government servant belonging to the same class of Government employees and not connected with any political party may also be a member of the Association;

(d)

no person other than Government servant of the category for which the Association is formed is connected with the affairs of the Service Associations;

(e)

the executive of the Service Association shall be appointed from the amongst the members only; and

(f)

the funds of the Service Association shall consist exclusively of subscriptions from members and grants, if any, made by the Government, and shall be applied only for the furtherance of the object of the Service Association.

5.

Conditions subject to which recognition is granted.

- Every Service Association recognize or deemed to have been recognized under these rules shall comply with the following conditions, namely :

(a)

The Service Association shall not send any representation or deputation except in connection with a matter which is of common interest to the members of the Service Association.

(b)

The Service Association shall not espouse or support the cause of individual Government servants relating to service matters.

(c)

The Service Association shall not maintain any political fund or lend itself to the propagation of the views of any political party or politician.

(d)

All representations by the Service Association shall be submitted through proper channel and shall, as a normal

practice, be addressed to the Secretary or Head of the Department or office concerned.

(e)

A list of members and office bearers, an up-to-date copy of the rules and an audited statement of accounts of the Service Association shall be furnished annually to Government through proper channel, after each annual general meeting, so as to reach the Government before the 1st day of July each year.

(f)

Any amendment in the rules of the Service Association shall be made only with the previous approval of the Government, and Government may, from time to time, require modification of a rule or proposed rule in a particular manner.

(g)

The previous permission of the Government shall be taken before the Service Association seeks affiliation with any Service Association of the State or the Union of India.

(gg)

The Service Association shall cease to be affiliated to a Federation or Confederation of Service Associations whose recognition under these rules is withdrawn by Government.

(h)

The Service Association shall not start or publish any periodical magazine or bulletin without prior approval of the Government.

(i)

The Service Association shall cease to publish any periodical magazine or bulletin, if directed by the Government to do so on the ground that the publication thereof is prejudicial to the interest of the State Government or any Government authority or to good relation between Government servant and the Government or any Government authority.

(j)

The Service Association shall not do any act or assist in the doing of any act which, if done by Government servant, would contravene any of the provisions of the Uttar Pradesh Government Servants' Conduct Rules, 1956.

(k)

The Service Association shall not address any communication to a foreign authority except through the Government, which shall have the right to withhold it.

(l)

Communications addressed by the Service Association or by any office-bearer on its behalf to the Government or a Government authority shall not contain any disrespectful or improper language.

6.

Duties of recognized Service Associations.

- (i) A Federation or a Confederation of Service Associations shall affiliate only recognized Service Associations; and if the recognition accorded to any of the Service Associations affiliated to a Federation or a Confederation of Service Association is withdrawn, the Federation or Confederation of Service Association shall forthwith disaffiliate such Service Association.

(ii)

The aims and objects of the Federation should be to promote the spirit of self-help, goodwill and co-operation amongst the affiliated Associations, to protect and safeguard the interest, rights and privileges and dignity of the members of the affiliated Service Association.

(iii)

The Federation may represent only on matters of general importance and may not take up question of individual Association regarding which individual member Associations above will have the right of making representation to the State Government or the Head of the Department.

(iv)

Federations will also be governed by Rules 4 and 5 so far as applicable to them.

7.

Withdrawal of recognition.

- If in the opinion of Government, a Service Association recognized under these rules has failed to comply with the conditions set out in Rule 4, Rule 5 or Rule 6, the Government may withdraw the recognition accorded to such

Association. The Association shall be granted an opportunity before withdrawing recognition.

8.

Relaxation.

- The Government may dispense with or relax the requirements of any of these rules to such extent and subject to such conditions as it may deem fit in regard to any Service Association or class of Service Associations.

9.

Removal of doubts.

- If any question arises as to the interpretation of any of the provisions of these rules, it shall be referred to the Government whose decision thereon shall be final.

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